

Supreme Court of Nova Scotia
(Family Division)

Between: [copy standard heading]

[name]

Applicant

and

[name]

Respondent

Notice to Band

To: [name of band council member]

The applicant is applying to the Supreme Court of Nova Scotia (Family Division) for the following declaration and order:

1. A declaration pursuant to section 56 of the *Children and Family Services Act* that
 - (a) the child, [full name, birthdate] (“the child”), is suffering from an emotional or behavioural disorder, and
 - (b) it is necessary to confine the child in order to remedy or alleviate the disorder; and
2. An order that
 - (a) pursuant to section 56 of the *Children and Family Services Act*, that the applicant is authorized to do the following with respect to the child [full name and date of birth]:
 - (i) admit the child to a secure-treatment facility, in particular [*Wood Street Centre Secure Treatment, 225 Wood Street, Truro, Nova Scotia/[name of other secure-treatment facility]*] (“the secure-treatment facility”),
 - (ii) detain the child at the secure-treatment facility for the purpose of diagnostic and treatment services in accordance with the plan of care determined by the applicant; and

- (iii) discharge the child from the secure-treatment facility during the currency of this Order or on its expiration, in accordance with a discharge plan determined by the applicant; and
- (b) Pursuant to section 59 of the *Children and Family Services Act*, grant authority to a peace officer, representative or person designated by the applicant in accordance with the regulations made under the Act, to apprehend, detain, and convey the child [full name and date of birth] to [Wood Street Centre Secure Treatment located at 225 Wood Street, Truro NS/[name of other secure-treatment facility]].

The applicant started this application by filing a Notice of Application on the date certified by the prothonotary.

Notice of Hearing

At [a.m./p.m.] on , 20 , a hearing will take place before a judge in Chambers at the Courthouse, [insert address] , Nova Scotia to hear a motion for an order to detain the child at the secure treatment facility and such other relief as noted in paragraphs 1 and 2 herein. The judge may grant the order in your absence if you or your counsel do not attend.

You may participate

The Band may participate in the hearing. You are entitled to notice of further steps in the proceeding, unless a judge orders otherwise.

Agency Contact Person

The social worker for the applicant is [name] of the [office, with address] who may be contacted at [telephone number(s)].

Notice of Band's Intentions

You must advise the court and the parties of the band's interest in the proceeding by way of the Notice of Band's Intentions, a copy of which is attached to this notice. This document should be filed with the court and provided to all parties to the proceeding.

Possible interim or final order against you

The judge may grant an interim or final order without further notice to you if you or your counsel do not appear at the time, date, and place for any hearing.

Counsel

You may retain and instruct counsel to represent you at the hearing.

Filing and delivering documents

Any documents you file with the court must be filed at the office of the Supreme Court of Nova Scotia (Family Division), [insert address and telephone number].

The *Nova Scotia Civil Procedure Rules* require that whenever you file a document you must immediately deliver a copy of it to the applicant and each other party entitled to notice, unless the document is part of an *ex parte* motion, the parties agree delivery is not required, or a judge orders it is not required.

Documents you deliver to the applicant may be delivered to the applicant's designated address shown in the contact information for applicant on this notice, and documents delivered there are considered received by the applicant on delivery.

Contact information

The applicant designates the following address: [insert address]

Further contact information is available from the prothonotary.

Signature

Signed , 20

Signature of applicant

Print name:

[or]

Signature of counsel [name] as
counsel for [name]

Prothonotary's certificate

I certify that this Notice to Band was filed with the court on [insert date]

Prothonotary

TAKE NOTICE: Sharing identifying information, including copies of documents, from this proceeding verbally, in writing or through the internet, including Facebook, Snapchat, Instagram or any other social media, is an offence pursuant to s. 94(1) of the *Children and Family Services Act*, punishable by a fine of up to \$10,000 and imprisonment for 2 years.